BY ORDER OF THE COMMANDER
30TH SPACE WING

30TH SPACE WING INSTRUCTION 51-901

27 APRIL 2010
Certified Current, 3 November 2020
Law

DISPOSITION OF JUVENILE MISCONDUCT CASES

COMPLIANCE WITH THIS INSTRUCTION IS MANDATORY

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OPR: 30 SW/JA
Supersedes: 30SWI51-901, 1 January 2002

Certified by: 30 SW/JA
(Lt Col Vincent M. Buquicchio)
Pages: 14

This instruction implements AFPD 51-9, *Civil Law For Individuals* and provides the framework for the disposition of juvenile misconduct cases and the treatment of juveniles on Vandenberg AFB, CA. The purpose of this instruction is to establish policies, responsibilities, and procedures for the administrative disposition of misconduct committed by juveniles on Vandenberg AFB and to establish the Vandenberg AFB Juvenile Assistance Council (JAC). The JAC will hear cases in which a juvenile is alleged to have engaged in misconduct or any other case referred to it by the 30 Space Wing (30 SW). Any actions taken by the JAC will be designed to attain the primary goal of maintaining good order and discipline on Vandenberg AFB and, if possible, rehabilitating the juvenile. Notwithstanding the existence of this instruction, AFI 51-905, *Use of Magistrate Judges for Trial of Misdemeanors Committed by Civilians* and the Federal Magistrate's Court program will continue to apply to all offenses committed on base by civilians. This publication is affected by the Privacy Act of 1974. Each form that is subject to the provisions of AFI 33-332, *Air Force Privacy Act Program*, and is required by this publication will contain a Privacy Act statement, either incorporated in the body of the document or in a separate statement accompanying each document. Refer recommended changes and questions about this instruction to 30 SW/JA, 747 Nebraska Ave., Suite C-100, VAFB CA 93437, using AF Form 847, *Recommendation for Change of Publications.* Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 33-363 *Management of Records*, and disposed of in accordance with

the Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/**.

SUMMARY OF CHANGES

No major concept changes have been made to this instruction. Minor changes have been made throughout to clarify administrative matters, including an articulation that the JAC chairman may issue a warning letter in his or her discretion rather than meeting with the juvenile or taking no action. A sample warning letter has been added as **Attachment 4**.

1. Authority.

1.1. Public Law 93-415, *Juvenile Justice and Delinquency Prevention Act of 1974* (18 U.S.C. §§ 5031-5042), provides that misconduct committed by a juvenile in an area of Federal jurisdiction should be disposed of outside the Federal courts whenever feasible. This statute establishes an administrative system in lieu of prosecution of juveniles for misdemeanor non-traffic offenses in Federal Magistrate's Court. Felony offenses committed by juveniles in violation of the United States Code will continue to be prosecuted in Federal Court.

1.2. AFI 31-101, *Integrated Defense*, provides that the installation commander is charged with protecting government property and personnel from hostile and criminal acts. To achieve this goal, the commander may require that any juvenile charged with misconduct appear before the JAC and explain why base privileges should not be limited or revoked. Privileges subject to revocation include the following: base exchange, base gas station, commissary, housing, theater, shoppette, base driving privileges, and the privilege of entering any part (or all) of the base. This instruction complies with the foregoing law and instruction by ensuring that an offense involving a juvenile is identified, adjudicated, and disposed of in a manner that maintains good order and discipline while stressing deterrence and rehabilitation of the juvenile.

2. Purpose of the JAC.

2.1. The JAC is designed to:

2.1.1. Maintain good order, morale and discipline on Vandenberg AFB.

2.1.2. Educate juveniles and their sponsors on the consequences of misconduct and crime (i.e., the impact crime has on the juvenile, the juvenile's family, the victim(s), and the community).

2.1.3. Rehabilitate juveniles through counseling, education, community service, restitution, and other means of corrective action as recommended by the JAC and ordered by 30 SW/CC.

2.1.4. Protect the best interests of both the juvenile and the Vandenberg AFB community. Accordingly, the system avoids labeling the juveniles with the stigma of "criminal" or "delinquent." Rather, simply the term "juvenile" is used in this instruction.

3. Individuals Subject to the Program.

3.1. This instruction applies to all juveniles who have engaged in misconduct on Vandenberg AFB, including:

3.1.1. Juvenile dependents of personnel stationed at Vandenberg AFB (to include all tenant units).

3.1.2. Juvenile dependents of active duty or retired military personnel using Vandenberg AFB facilities.

3.1.3. Juvenile dependents of DoD civilians or contractors.

3.1.4. Non-base affiliated juveniles who are attending school on Vandenberg AFB.

3.1.5. Any juvenile on Vandenberg AFB for any reason.

3.2. This instruction also applies to the sponsors of juveniles who engage in misconduct on Vandenberg AFB.

4. Scope of the JAC.

4.1. The JAC will adjudicate cases involving non-traffic offenses such as simple/non-aggravated assault, battery, shoplifting, trespassing, or other types of cases at the discretion of the 30 MSG/CC.

4.2. The JAC will not adjudicate traffic offenses. 30 SFS will continue to issue a United States District Court Violation Notice to juveniles who commit minor traffic offenses. These offenses will continue to be processed through the Central Violations Bureau (CVB) and the Federal Magistrate Court.

4.3. Certain rehabilitative measures, such as referral to counseling, performance of community service, or participation in a work program by the juvenile may only be imposed by the JAC if the juvenile agrees to submit to the JAC's jurisdiction. Participation by the juvenile in the JAC program is **voluntary**. However, certain administrative sanctions may be taken immediately upon commission of an offense against a juvenile even if the juvenile refuses to submit to the jurisdiction of the JAC. For example, 30 SW/CC retains the authority, under AFI 31-101, to bar the juvenile from base or terminate base housing privileges for the juvenile's family. Rescission of administrative sanctions (e.g., reinstatement of privileges) may be contingent upon the juvenile's consent to the jurisdiction of the JAC and satisfactory completion by the juvenile and/or his or her sponsor of rehabilitative measures ordered by the JAC.

4.4. If a juvenile refuses to submit to the jurisdiction of the JAC, the juvenile's case will be referred to the Office of the Staff Judge Advocate (30 SW/JA) to determine whether to forward the case through appropriate state or federal channels for disposition.

5. Composition of the JAC.

5.1. The Deputy Commander, 30th Mission Support Group (30 MSG/CD), shall serve as the JAC Chairman.

5.2. The Chairman may select other members of the base community to sit on the JAC if the nature of a particular case so requires. The other members may include, but are not limited to, the following organizations:

5.2.1. Chaplain (30 SW/HC).

5.2.2. 30th Security Forces Squadron (30 SFS).

5.2.3. Family Advocacy (30 MDOS/SGOH).

5.2.4. Family Member Programs Flight (30 MSG/SVY).

5.3. Special invited guests, such as a representative from the Family Support Center (30 MSS/DPF) or the Base Housing Management Office (30 CES/CEH), may also attend as appropriate. Guests may also include the sponsor's commander and first sergeant.

5.4. An attorney from 30 SW/JA will be available to advise the Chairman on legal issues. The attorney may also sit as a member of the JAC.

6. Responsibilities.

6.1. Security Forces (30 SFS) will:

6.1.1. Prepare AF Form 3545, Incident/Complaint Report, accurately describing the alleged misconduct for all non-traffic related offenses.

6.1.2. Contact the juvenile and sponsor with the date, time, and location of the meeting with the JAC Chairman. The meeting date shall be as soon as possible, but no later than 90 days after discovery of a juvenile's alleged involvement in a particular incident or 90 days after the completion of an investigation into an incident of juvenile misconduct, whichever is later.

6.1.3. Issue a notification memorandum (see **Attachment 2**) signed by 30 MSG/CD to the juvenile and the juvenile's parent(s)/sponsor(s) informing them of the charge (an information copy will be sent to the sponsor's unit commander).

6.1.4. If applicable, issue to the juvenile a memorandum signed by 30 MSG/CC that immediately suspends the juvenile's on-base privileges relating to the offense and serve a copy on the juvenile and the juvenile's parent(s)/sponsor(s).

6.1.5. Send the DD Form 3545 and a copy of the notification letter to 30 SW/JA and 30 MSG/CD.

6.1.6. If any of the juvenile's privileges are to be revoked, 30 SFS/S5SR will prepare a revocation memorandum for 30 MSG/CC's signature, addressed to the sponsor, directing the sponsor to apply for a replacement identification card for the juvenile with limited privileges. Once signed and returned, 30 SFS/S5SR will ensure the signed memorandum is mailed or given in hand to the juvenile and his or her parent(s)/sponsor(s) and a copy is forwarded to 30 MSS/DPMPS.

6.2. The 30 MSG/CC will determine if the matter is appropriate for JAC disposition and, based on the facts of each case, whether other members of the JAC need to be present at the hearing. When practicable, 30 MSG/CC should consult with the JAC legal advisor in making these determinations.

6.3. The 30 MSG/CD will:

6.3.1. In cases where 30 MSG/CC finds it unnecessary to convene the JAC, send, when determined appropriate by 30 MSG/CC and 30 MSG/CD, a notice to the juvenile and his

or her parent(s)/sponsor(s) explaining that future misconduct may result in an appearance before the JAC (see **Attachment 4**).

6.3.2. Prepare a decision memorandum (see **Attachment 3**), addressed to the juvenile, announcing the final disposition of the case. The memorandum shall also include information regarding community service, counseling referrals, etc., as applicable. Ensure the signed memorandum is given to the juvenile and his or her sponsor(s) and that a copy is forwarded to 30 SFS/S5SR and 30MSS/DPMPS.

6.4. The JAC will:

6.4.1. Meet as directed by the JAC Chairman to review cases of juvenile misconduct.

6.4.2. Determine whether an act of misconduct was committed by a juvenile by utilizing a preponderance of the evidence standard. This is the standard of proof necessary to find that the juvenile committed the misconduct in question. This standard is met when the credible evidence as a whole shows that it is more probable than not that the juvenile engaged in misconduct.

6.4.3. Recommend an appropriate response to the misconduct, including but not limited to the following or any combination thereof:

6.4.3.1. No action.

6.4.3.2. Oral counseling, admonition, or reprimand of the juvenile and/or his or her sponsor.

6.4.3.3. Written counseling, admonition, or reprimand of the juvenile and/or his or her sponsor signed by 30 MSG/CD.

6.4.3.4. Referral of the juvenile and/or sponsor(s) to Family Advocacy, Mental Health, or other agency for counseling.

6.4.3.5. Placement of certain base areas and/or facilities off-limits to the juvenile.

6.4.3.6. Imposition of a curfew other than the normal base curfew.

6.4.3.7. Restriction of access to base functions.

6.4.3.8. Suspension or revocation of any or all base privileges.

6.4.3.9. Recommendation of barment from Vandenberg AFB to 30 SW/CC.

6.4.3.10. Recommendation of termination of on-base family housing to 30 SW/CC.

6.4.3.11. Requirement that the juvenile complete a specified number of hours of community service on or off Vandenberg AFB.

6.4.3.12. Recommendation of corrective action to other base agencies.

6.4.3.13. Referral to 30 SW/JA to determine whether to forward the case to a civilian tribunal for disposition. This will likely be the outcome when, during the JAC proceedings, additional information becomes known which casts the alleged offense(s) in a much more serious light than previously believed.

6.4.3.14. Any other action deemed appropriate for the preservation of good order, morale and discipline on Vandenberg AFB after consultation with an attorney from 30 SW/JA.

6.4.4. The JAC may require the juvenile and sponsor to attend a future JAC meeting to determine whether the action taken was correct and sufficient and whether the juvenile is complying with the terms and conditions.

6.5. The juvenile and his or her sponsor will:

6.5.1. Notify 30 MSG/CD and 30 SW/JA if they will submit to the jurisdiction of the JAC.

6.5.2. Appear before the JAC as directed in the notification memorandum.

6.5.3. Be afforded at the JAC hearing an opportunity to provide information relevant to the case by means of personal testimony, witnesses, documents, and other evidence and have these matters heard.

6.5.4. Upon submission to the jurisdiction of the JAC, comply with all orders of the JAC and the decision memorandum issued by 30 MSG/CD. While participation in community service and counseling programs by the juvenile and/or the sponsor is voluntary, rescission of administrative sanctions (e.g., reinstatement of privileges) may be contingent upon the satisfactory completion of such programs.

6.6. An attorney from 30 SW/JA will:

6.6.1. Be available to the Chairman to advise on legal issues as needed.

6.6.2. Bring to the JAC's attention and resolve any issues of law that arise before, during and after the JAC proceedings.

7. Conducting JAC meetings.

7.1. The JAC Chairman shall conduct JAC meetings.

7.2. The JAC may arrange for the appearance of any witness deemed necessary for the resolution of the case. Formal rules of evidence do not apply. The JAC may consider information, within its discretion, that is deemed reliable.

7.3. JAC meetings shall be closed to the public, as the information discussed is protected from public disclosure by the Privacy Act, 5 U.S.C. §552a.

7.4. Members of the JAC attending the hearing may make relevant inquiries of the juvenile, his or her sponsor, or any witness.

7.5. JAC meetings are not adversarial proceedings. Neither the juvenile nor his or her sponsor has the right to free assistance of legal counsel during the meeting. Nothing in this instruction shall be construed to grant any additional legal rights to the juvenile or his or her sponsor.

8. Records Management. 30 SFS/S5SR staff shall maintain the confidentiality of all records subject to the Privacy Act of 1974 and dispose of them in accordance with AFI 33-332, *Privacy Act Program.* Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/**.

9. Adopted Forms AF Form 3545, *Incident/Complaint Report*

DAVID J. BUCK, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 31-101, *Integrated Defense*, 8 October 2009

AFI 33-332, *Air Force Privacy Act Program*, 29 January 2004

AFI 51-905, *Use of Magistrate Judges for Trial of Misdemeanors Committed by Civilians*, 1 June 1998

Public Law 94-415, *Juvenile Justice and the Juvenile Justice and Delinquency Prevention Act of 1974* (18 U.S.C. §§ 5031-5042)

Terms

Jurisdiction—The JAC shall have jurisdiction over minor juvenile misconduct that occurs on Vandenberg AFB. Major misconduct, including Class A misdemeanors and felonies, will be referred to 30 SW/JA to determine whether to forward to state or federal tribunals for disposition.

Juvenile—An unemancipated minor. A person is unemancipated if he or she is not 18 years of age, is unmarried, is not in military active duty status, is not living separate and apart from his or her parents or guardian, and has not been deemed emancipated by a court of competent jurisdiction. A minor is any person under the age of 18 years.

Juvenile Assistance Council—The council charged with reviewing cases of minor juvenile misconduct.

Misconduct—A violation of a federal, state, or local statute; a breach of Air Force or installation instructions or regulations; or conduct disruptive to good order, morale, or discipline on Vandenberg AFB. Examples include, but are not limited to, any of the following: (1) Pattern of disobedience of the lawful rules set forth by Security Forces or recreation supervisors, etc. (2) disrespect to military or civil service personnel, or physical assault or battery upon any of these persons. (3) Loitering about the streets, parking lots, or buildings of Vandenberg AFB during the hours of darkness in violation of curfew regulation. (4) Vandalism or destructive behavior causing damages to property. (5) Shoplifting from a commissary, Base Exchange, or other AAFES institution.

Preponderance of the Evidence—The standard of proof necessary to find that a juvenile committed the misconduct in question. This standard is met when the credible evidence as a whole shows that it is more probable than not that the fact sought to be proved (i.e., that the juvenile committed the act) actually occurred.

Sponsor—An adult who is the parent or guardian of a juvenile alleged to have committed misconduct on Vandenberg AFB. A sponsor includes the host of a guest from off base or who has responsibility for the conduct of juveniles in his or her charge.

Attachment 2

SAMPLE FORMAT FOR LETTER NOTIFYING JUVENILE OF JAC MEETING

Figure A2.1. Sample Format for Letter Notifying Juvenile of JAC Meeting.

MEMORANDUM FOR (Juvenile's Name)
(Address)
(Address)

FROM: 30 MSG/CD
1031 California Blvd, Suite C200
Vandenberg AFB CA 93437

SUBJECT: Notification to Appear Before the Juvenile Assistance Council (JAC)

1. In accordance with 30 SWI 51-901, *Disposition of Juvenile Misconduct Cases*, you and your parent(s)/sponsor(s) are hereby notified to appear before the JAC on _____(date) at _____(time). The JAC will meet at _____(location). If necessary, you and your parent(s)/sponsor(s) may use this letter to gain access to Vandenberg Air Force Base for the purpose of attending the meeting.

2. The reason for this meeting is that on _____ (date), you were allegedly involved in the following juvenile misconduct on Vandenberg Air Force Base: _____
_____.
Misconduct is defined as any violation of federal, state, or local statute, a breach of Air Force or installation instructions or regulations, or other activity prejudicial to good order and discipline on Vandenberg Air Force Base.

3. The JAC will decide whether or not you were involved in the alleged misconduct. You and your parent(s)/sponsor(s) may present any relevant information, facts, or circumstances for consideration by way of witness testimony or exhibits. You may testify or decline to testify at your discretion. If you intend to present witnesses or exhibits, you must present a list of each witness or exhibit to the JAC at the meeting.

4. Possible sanctions include, but are not limited to: no action; verbal counseling; written counseling; referral of the juvenile and/or sponsor to Family Advocacy, Life Skills, or other agency for counseling; placement of certain base areas and/or facilities off-limits to the juvenile; imposition of a curfew other than the normal base curfew; restriction of access to base functions; suspension or revocation of any or all base privileges; recommendation of barment to 30 SW/CC; recommendation of termination of on-base family housing to 30 SW/CC; assignment to the juvenile of a specified number of hours of community service on or off Vandenberg AFB; recommendation of corrective action to other base agencies; and/or referral of the case to an appropriate civilian tribunal (This will likely be the outcome when, during the JAC proceedings, additional information becomes known which casts the alleged offense(s) in a much more serious light than previously believed.).

5. An electronic copy of 30 SWI 51-901, *Disposition of Juvenile Misconduct Cases*, is available at www.e-publishing.af.mil. If you do not have access to the internet, please contact me, and I will make a copy of 30 SWI 51-901 available to you. The Security Forces Squadron can provide you copies of any relevant statement/complaint reports.

6. A copy of this letter will be served to your parent(s)/sponsor(s). Another copy will be presented to your sponsor's commander.

7. If you do not wish to submit to the jurisdiction of the JAC, or if you need to reschedule, you must contact 30 MSG/CD at (805) 606-8700. If you decline or fail to appear before the JAC, you may be barred from base pursuant to AFI 31-101, *Integrated Defense*, and your case may be referred for disposition in a civilian tribunal.

(30 MSG/CD)

cc:
(Parent/Sponsor)
(Sponsor's Commander)

Attachment 3

SAMPLE FORMAT FOR JUVENILE ASSISTANCE COUNCIL DECISION

Figure A3.1. Sample Format for Juvenile Assistance Council Decision.

MEMORANDUM FOR

FROM: 30 MSG/CD

SUBJECT: Juvenile Assistance Council (JAC) Decision

1. On _____ (date) at _____ (time), you met with the Juvenile Assistance Council to determine your involvement, if any, in the following misconduct on Vandenberg AFB: _____ _____.

Based on a preponderance of the evidence, the JAC decided you (were) (were not) involved in the misconduct described above. [NOTE: If the decision is made that the juvenile was not involved in the misconduct alleged, none of the additional language below should be included in the decision memorandum.] Because of your involvement, you must comply with the following actions: [NOTE: Only insert relevant actions. The following are common examples:]

a. Your Base Exchange privileges will be revoked for a period of one (1) year. You must **request reinstatement** of your exchange privileges, in writing, upon expiration of the revocation period. Requests should be addressed to 30 SFS/S5SR, 108 Colorado Blvd, Vandenberg AFB CA 93437.

b. You must complete the Youth Educational Shoplifting Program.

c. You must pay restitution to AAFES in the amount of $_____ by _____ (date).

d. You and your parents must complete a Teen Parenting Class and Family Counseling. You should contact the Life Skills Office, 30 MDOS/SGOH at (805) 606-8217 to schedule the class. The return of your privileges on base is contingent upon completion of Teen Parenting Class.

e. You must complete _____ hours of community service by _____ (date). You should call the _____ (volunteer coordinator) to schedule those hours.

f. Other.

2. You must provide written evidence of completion of actions listed in paragraph 1, above, by _____ (date) to 30 SFS/S5SR.

3. Failure to comply with these requirements could result in further action being taken, including, but not limited to, referral of your case for disposition in a civilian tribunal and barment from Vandenberg AFB.

4. It is my responsibility to maintain good order and discipline on this base. I believe you understand what is right and wrong. If you learn from this experience, perhaps some good will

come of your otherwise poor choices. You have the potential to do much better. I am confident you will make better choices in the future.

(30 MSG/CD)

cc:
30 MSG/CCIM
30 SFS/S5SR
30 MSS/DPMPS

1st Ind, Parent/Guardian of _____

MEMORANDUM FOR 30 MSG/CD
Receipt acknowledged this _____ day of _____. I understand all required actions must be completed in the time stipulated and written evidence presented to 30 SFS/S5SR.

_____
Signature

Attachment 4

SAMPLE FORMAT FOR JUVENILE ASSISTANCE COUNCIL WARNING LETTER

Figure A4.1. Sample Format for Juvenile Assistance Council Warning Letter.

MEMORANDUM FOR

FROM: 30 MSG/CD

SUBJECT: Juvenile Assistance Council (JAC) Warning Letter

1. The reason for this letter is that on _____ (date), you were allegedly involved in the following juvenile misconduct on Vandenberg Air Force Base: _____ _____.
Misconduct is defined as any violation of federal, state, or local statute, a breach of Air Force or installation instructions or regulations, or other activity prejudicial to good order and discipline on Vandenberg Air Force Base.

2. In accordance with 30 SWI 51-901, *Disposition of Juvenile Misconduct Cases*, you and your parent(s)/sponsor(s) could be required to appear before the JAC and answer for this alleged misconduct. However, because [Insert relevant statement, e.g., this is the first time you have been implicated in juvenile misconduct on Vandenberg AFB], you will not be required to appear before the JAC at this time.

3. If you were required to appear before the JAC, and the JAC decided that you were involved in the alleged misconduct, possible sanctions could include, but would not be limited to: no action; verbal counseling; written counseling; referral of the juvenile and/or sponsor to Family Advocacy, Life Skills, or other agency for counseling; placement of certain base areas and/or facilities off-limits to the juvenile; imposition of a curfew other than the normal base curfew; restriction of access to base functions; suspension or revocation of any or all base privileges; recommendation of barment to 30 SW/CC; recommendation of termination of on-base family housing to 30 SW/CC; assignment to the juvenile of a specified number of hours of community service on or off Vandenberg AFB; recommendation of corrective action to other base agencies; and/or referral of the case to an appropriate civilian tribunal.

4. Be advised that juvenile misconduct of this sort will not be tolerated on Vandenberg AFB. If you are implicated in any future misconduct, you will be required to appear before the JAC at that time and answer for your actions. Consider this your warning to make better choices about your future conduct and/or the company you keep.

(30 MSG/CD)

cc:
(Parent/Sponsor)

Attachment 5

SAMPLE FORMAT FOR JUVENILE ASSISTANCE COUNCIL REQUIREMENT COMPLETION LETTER

Figure A5.1. Sample Format for Juvenile Assistance Council Requirement Completion Letter.

MEMORANDUM FOR

FROM: 30 MSG/CD

SUBJECT: Completion of Juvenile Assistance Council (JAC) Requirements

1. I have been informed by 30 SFS/S5SR that your child, _____, has completed the community service requirements of the JAC pertaining to the incident of misconduct. You are cautioned that any further unfavorable incidents may result in barment of your child from Vandenberg AFB.

2. It is my sincere hope that _____ has learned a meaningful lesson regarding the behavior expected of military family members while residing on this installation. I appreciate your cooperation in making certain your child accomplished the requirements as directed. I know you will continue to take responsibility for your child's behavior to ensure there are no future incidents of misconduct.

(30 MSG/CD)

cc:
(Sponsor's Commander)